

Rashid @ Rashid Mohammad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 February 2024 · 2024:AHC:19938-DB · WRIT - C No. 45218 of 2023 · **Writ dismissed as infructuous after recovery citation withdrawn.**

HEADNOTE

Allahabad High Court dismissed as infructuous a writ against a recovery citation dated 24 August 2023 after the electricity department withdrew the citation on 5 February 2024. Interim orders had restrained coercive recovery while the department was to check whether the final assessment of 4 May 2022 followed the U.P. Electricity Supply Code, 2005. That question was not decided.

FACTUAL SUMMARY

Rashid alias Rashid Mohammad writ-petitioned the Allahabad High Court against a recovery citation dated 24 August 2023. In January 2024, counsel for the electricity department sought time to check whether a final assessment under the U.P. Electricity Supply Code, 2005 had been made. He could not show a hearing date before the assessment order of 4 May 2022, or that the order was served. The Court barred coercive steps on the recovery certificate and extended that protection. The respondents withdrew the citation on 5 February 2024.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

infructuous dismissal after withdrawal of recovery citation

HOLDING

The writ questioning the recovery citation dated 24 August 2023 was dismissed as infructuous after the electricity department withdrew that citation on 5 February 2024. The Court recorded no construction of any clause of the U.P. Electricity Supply Code, 2005. ¶ 2-4

PRINCIPLE TAGS

procedural-listing-no-construction Successive listings ended in dismissal as infructuous once the recovery citation was withdrawn. No clause of the Supply Code was construed. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT ORDER DATED 4 MAY 2022 FOLLOWED THE PROCEDURE IN THE U.P. ELECTRICITY SUPPLY CODE, 2005, INCLUDING A FIXED HEARING DATE AND SERVICE ON THE PETITIONER.

The department was granted time to ascertain this. The recovery citation was withdrawn before the Court ruled. ¶ 1